

18STCV01407 18STCV01407

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-30

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 30, 2026

CASE NUMBER

18STCV01407

MOTION

Motion to Strike or Tax Costs

MOVING PARTIES

Plaintiffs David Ortiz and Yuko Ortiz

OPPOSING PARTIES

Defendants Morley Construction Co., Inc., Benchmark

Contractors, Inc., 62 Hundred Hollywood South, LP, DLJ Real Estate Capital

Partners, LLC, Clarett West Development, LLC, and Right of Way, Inc.

MOTION

Plaintiffs

David Ortiz and Yuko Ortiz ("Plaintiffs") move to strike or tax the costs Defendants Morley Construction Co., Inc., Benchmark Contractors, Inc., 62 Hundred Hollywood South, LP, DLJ Real Estate Capital Partners, LLC, Clarett West Development, LLC, and Right of Way, Inc. ("Defendants") seek to recover.

Plaintiffs fail to

cite authority in the notice of motion under which the Court could grant the relief Plaintiffs seek. The Court cannot grant relief on grounds other than those set forth in the notice of motion. Ordinarily, because Plaintiff's motion is defective, the Court may deny it on that basis. (See Code Civ. Proc., § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based"]; Cal. Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"]; *People v. American Surety Insurance Co.* (1999) 75 Cal.App.4th 719, 726 [court concluded notice of motion made no reference to the fact of what the movant sought or the grounds for such relief, as required by rule 311(a) of the California Rules of Court, the predecessor to Rules of Court, rule 3.1110(a)].)

In the instant

case, given the parties have briefed the matter in full, the Court will consider it on the merits.^[1]

At the outset, the

Court notes it is not authorized, statutorily or otherwise, to reduce costs based on Plaintiffs' claimed inability to pay such costs. (See *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129 (Nelson) [the Court is not afforded any discretion to consider the non-prevailing party's ability to pay costs when considering recoverable costs under Code of Civil Procedure sections 1032 and 1033.5].)

The Court notes

the bulk of the costs Defendants seek relates to expert witness fees they incurred. As Plaintiffs point out, generally, fees related to experts not ordered by the Court are not recoverable. (Code Civ. Proc., § 1033.5, sub. (b)(1).) However, Defendants have

provided evidence, which Plaintiffs have not refuted, to the effect Defendants made a Code of Civil Procedure section 998 offer to Plaintiffs on or about February 25, 2022 to resolve this matter, which Plaintiffs declined to accept. Subsequently, Defendants obtained the services of experts, incurred costs related to such work, and ultimately prevailed in the matter against Plaintiffs. Under these set of circumstances, Defendants may recover the fees they paid such experts, provided the section 998 offer was reasonable and made in good faith. (See Code Civ. Proc., § 998, subd (c)(1) ["the court . . . , in its discretion may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses"]; Nelson, supra, 72 Cal.App.4th at p. 134.) In the instant matter, Defendants prevailed, thus, without Plaintiffs presenting any evidence the section 998 offer was unreasonable, the Court must presume it was reasonable. (Nelson, supra, 72 Cal.App.4th at p. 134.)

The Court does exercise its discretion and will find Defendants are entitled to receive "a reasonable sum to cover postoffer costs of services of expert witnesses" (Code Civ. Proc., § 998, subd. (c)(1)), as it does appear the experts were necessarily utilized in this matter, and Defendants prevailed. However, the Court will also exercise its discretion and grant Plaintiff's motion to tax by reducing that amount by one half, or \$15,978.75.

With respect to the other costs Defendants seek, in addition to the fees related to the appeal, the Court finds such fees were necessarily and reasonably incurred, and Plaintiffs have not established they should be taxed.

Plaintiffs are to give notice of the Court's ruling and to file proof of service of same.

[1]The

Court acknowledges Defendants' contention Plaintiffs' motion to tax costs incurred in the case-in-chief was untimely filed given Defendants' cost memorandum was filed and served on or about October 24, 2023, and Plaintiffs did not file this motion until March 4, 2026.

However, given the many starts and stops of this litigation and the apparent confusion regarding whether and during what period this case was stayed, the Court will not find any delay in filing the motion to be a basis for denying

